

Plaintiff argues that Defendants have not produced sufficient evidence showing that they are indigent. Plaintiff argues that Defendants' assertions that all their income is used to pay for basic necessities, including rent, lacks credibility since they are living rent-free at the Subject Property. Plaintiff argues that the present Motions constitute improper motions for reconsideration.

Motion for Reconsideration:

As Plaintiff correctly notes, the present Motions are essentially motions for reconsideration of the orders granting relief from default since there is no other means to apply for reconsideration of any order unless made according to CCP § 1008.(CCP § 1008(e); *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal. 4th 830, 840 (“*Even Zohar*”).) Pursuant to CCP §1008(a), when an application for an order has been made to a judge or to a court, and refused in whole or in part, granted, or granted conditionally, or on any terms, any party affected by the order, within 10 days of service upon the party of written notice of entry of the order and based upon new or different facts, circumstances or law, make application to the same judge or court to reconsider the matter and modify, amend, or revoke the order. “[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” (*Mink v. Superior Court* (1992) 2 Cal. App. 4th 1338, 1342.) Section 1008 applies to reconsideration of an order granting or denying relief under CCP § 473(b). (*Even Zohar, supra*, 61 Cal. 4th at 840-841.)

Here, the Motions are untimely. As stated, a motion for reconsideration under section 1008 must be made within 10 days of service of written notice of entry of the order. The order was issued on May 14, 2026 and mailed to all parties on the same day. (See Cert. of Mailing.) The Motions were not filed until June 12, 2026. Moreover, Defendants have not produced any evidence that could not have been presented at hearing on the Motions to Set Aside Default. In their fee waiver requests, both Defendants stated that they receive food stamps and Medi-Cal. Neither provided any information regarding gross household income nor indicated that their income was less than the amounts listed in Section 5(b). This information was previously available. Defendants have not provided a satisfactory explanation as to why the evidence regarding their financial situation was not produced earlier. Thus, because Defendants have not timely moved for reconsideration or provide new or different facts, circumstances or law to justify reconsideration, the Motions must be denied.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2506930	DIAMANTIDES-ABEL VS DIAMANTIDES ABEL	HEARING RE: MOTION TO STRIKE COMPLAINT OF ARGY DIAMANTIDES-ABEL BY ZACHARIAS DIAMANTIDES ABEL

Tentative Ruling: Denied.

Court to provide notice pursuant to CCP 1019.5.

This is a quiet title action. Plaintiff Argy Diamantides Abel ("Plaintiff") alleges that since 2014, she has been the sole owner of a residential property in Palm Desert ("Subject Property"). Plaintiff asserts that she temporarily transferred title to the Subject Property to her three sons, including Defendant Zacharias Diamantides Abel ("Zacharias") to protect it from her siblings who were challenging their mother's Trust. In 2024, Zacharias and his girlfriend, Defendant Jaylin Ortega ("Ortega") (collectively with Zacharias "Defendants") briefly moved into the Subject Property with Plaintiff's consent. Plaintiff alleges that Defendants caused damage to the carpets and failed to tend to the landscaping, leading to a public nuisance citation. On June 1, 2025, Defendants began living rent-free in the Subject Property without Plaintiff's knowledge or consent. When Plaintiff learned of the occupancy, she went to the Subject Property, but Defendants had changed the garage and front door codes. Sheriff's deputies were called and ordered to Plaintiff to leave the premises since Zacharias, rather than Plaintiff, was a titled owner.

On September 22, 2025, Plaintiff filed the Complaint. She asserts three causes of action for: (1) Quiet Title; (2) Financial Elder Abuse; and (3) Rescission of Deed of Trust.

The Proofs of Service, filed on November 21, 2025, indicate that on both Defendants were personally served at the Subject Property on November 2, 2026. On December 10, 2026, default was entered against both Defendants. On January 26, 2026, both Defendants filed motion to set aside the default, which were granted on May 14, 2026. In so granting, the Court ordered Ortega to pay sanctions in the amount of \$1,000.00 and Zacharias to pay sanctions in the amount of \$500.00 within 30 days of the Order.

Zacharias and Ortega filed separate Motions to Modify the Interlocutory Order to Strike Financial Condition as a Condition of Relief ("Motions") requesting that the sanctions be stricken from the May 14 Orders. Defendants argue that they are indigent and cannot pay the sanctions. Defendants argue that the sanctions will prevent them from defending the action in violation of their due process rights.

Plaintiff argues that Defendants have not produced sufficient evidence showing that they are indigent. Plaintiff argues that Defendants' assertions that all their income is used to pay for basic necessities, including rent, lacks credibility since they are living rent-free at the Subject Property. Plaintiff argues that the present Motions constitute improper motions for reconsideration.

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